

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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JOHNNY ANDRE,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER DAVID
WALKER, POLICE OFFICER PETER BORSENKO-
Shield No. 20167 and JOHN and JANE DOES-Police
Officers as yet unidentified,

Defendants.

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Index #

Date of filing:

Plaintiff designates Kings
County as the place of trial

Basis of the venue is the Locus
of Occurrence

SUMMONS

Plaintiff resides at
485 East 21st Street, Apt.# 1E
Brooklyn, New York 11226

County of Kings

TO THE ABOVE NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Defendant's address:

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

POLICE OFFICER DAVID WALKER
Tax ID # 948157
c/o New York City Police Department- Police
Service Area 9 (PSA 9)
155-9 Jewel Avenue
Flushing, New York 11367

POLICE OFFICER PETER BORSENKO-Shield
No. 20167
c/o New York City Police Department- 70th
Precinct
154 Lawrence Avenue
Brooklyn, New York 11230

Plaintiff's attorneys:

RUBENSTEIN & RYNECKI, ESQS.
16 Court Street, Suite 1717
Brooklyn, New York 11241
(718)522-1020

Dated: Brooklyn, New York
March 6, 2019

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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Index No.:

JOHNNY ANDRE,

Plaintiff,

COMPLAINT

-against-

THE CITY OF NEW YORK, POLICE OFFICER DAVID
WALKER, POLICE OFFICER PETER BORSENKO-
Shield No. 20167 and JOHN and JANE DOES-Police
Officers as yet unidentified,

Defendants.

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Plaintiff, by his attorneys, RUBENSTEIN & RYNECKI, ESQS., complaining of the
defendants herein, upon information and belief, respectfully shows to this Court, and alleges as
follows:

**AS AND FOR A FIRST CAUSE OF ACTION FOR ASSAULT
AND BATTERY ON BEHALF OF JOHNNY ANDRE**

1. That at all times hereinafter mentioned, plaintiff was and still is a resident of the
County of Kings, City and State of New York.
2. That all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK,
was and still is a municipal corporation, duly organized and existing pursuant to the laws of the
State of New York.
3. That the defendant, THE CITY OF NEW YORK, maintains a police force known
as the NEW YORK CITY POLICE DEPARTMENT.
4. That prior hereto on June 25, 2018, and within the time prescribed by law, a sworn
Notice of Claim stating, among other things, the time when and place where the injuries
and damages were sustained, together with plaintiff's demands for adjustment or payment thereof,
was served and that thereafter the CITY OF NEW YORK refused or neglected for more than (30)
days and up to the commencement of this action to make any adjustment or payment thereof, and
that thereafter, and within the time provided by law, this action was commenced.

5. That on August 28, 2018, pursuant to the General Municipal Law, a Statutory 50-H hearing of plaintiff was held.

6. That on April 29, 2018, and at all times hereinafter mentioned and upon information and belief, the defendant, POLICE OFFICER DAVID WALKER, POLICE OFFICER PETER BORSENKO-Shield No. 20167 and JOHN and JANE DOES-Police Officers as yet unidentified, as agents, servants and/or employees.

7. That on April 29, 2018, and at all times hereinafter mentioned and upon information and belief, the plaintiff, JOHNNY ANDRE, was lawfully at or about the premises located at 485 East 21st Street, in the County of Kings, City and State of New York.

8. That on April 29, 2018, and at all times hereinafter mentioned and upon information and belief, the plaintiff, JOHNNY ANDRE, was assaulted and battered at the aforementioned location by defendants, POLICE OFFICER DAVID WALKER, POLICE OFFICER PETER BORSENKO-Shield No. 20167 and JOHN and JANE DOES-Police Officers as yet unidentified, who were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK, at the aforesaid location.

9. That on April 29, 2018, and at all times hereinafter mentioned and upon information and belief, the aforementioned assault and battery was performed knowingly, intentionally and willfully.

10. That on April 29, 2018, and at all times hereinafter mentioned and upon information and belief the defendants, POLICE OFFICER DAVID WALKER, POLICE OFFICER PETER BORSENKO-Shield No. 20167 and JOHN and JANE DOES-Police Officers as yet unidentified, who committed the aforementioned assault and battery upon the plaintiff, JOHNNY ANDRE, were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK.

11. That on April 29, 2018, and at all times hereinafter mentioned and upon information and belief, the assault and battery on the plaintiff was without probable cause and was not the result of an appropriate arrest.

12. By reason of said assault and battery the plaintiff was caused to suffer severe and serious injuries in and about diverse parts of the person, and suffered great pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

13. By the reason of the foregoing, the plaintiff, JOHNNY ANDRE, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SECOND CAUSE OF ACTION FOR NEGLIGENT
HIRING AND RETENTION ON BEHALF OF JOHNNY ANDRE**

14. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "13" inclusive with the same force and effect as if more fully set forth at length herein.

15. That the defendant, THE CITY OF NEW YORK, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their police officers, agents, servants, and employees and were negligent in the hiring, training and retention of the defendants, POLICE OFFICER DAVID WALKER, POLICE OFFICER PETER BORSENKO-Shield No. 20167 and JOHN and JANE DOES-Police Officers as yet unidentified, who assaulted and battered and violated the civil rights of the plaintiff, JOHNNY ANDRE.

16. That the defendant, THE CITY OF NEW YORK, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants, POLICE OFFICER DAVID WALKER, POLICE OFFICER PETER BORSENKO-Shield No. 20167 and JOHN and JANE DOES-Police Officers as yet unidentified, and continued to employ them and allowed them to be in contact with the public at large.

17. By the reason of the foregoing, the plaintiff, JOHNNY ANDRE, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION FOR FALSE
ARREST ON BEHALF OF JOHNNY ANDRE**

18. The plaintiff repeats and realleges each and every allegation set forth above

numbered "1" through "17" inclusive with the same force and effect as if more fully set forth at length herein.

19. That on April 29, 2018, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER DAVID WALKER, POLICE OFFICER PETER BORSENKO-Shield No. 20167 and JOHN and JANE DOES-Police Officers as yet unidentified, were working within the scope of their employment and authority with the defendant, THE CITY OF NEW YORK, when they arrested and confined the plaintiff, JOHNNY ANDRE.

20. That on April 29, 2018, and at all times hereinafter mentioned and upon information and belief, the arrest and confinement was without probable cause nor based on reasonable grounds and not founded upon an arrest warrant.

21. That as a result of the aforesaid false arrest and confinement, plaintiff, JOHNNY ANDRE, sustained serious permanent personal injuries along with humiliation, shame, indignity, damage to reputation and credit and suffered emotional and physical distress, emotional distress and injuries.

22. By the reason of the foregoing, the plaintiff, JOHNNY ANDRE, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR FALSE
IMPRISONMENT ON BEHALF OF JOHNNY ANDRE**

23. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "22" inclusive with the same force and effect as if more fully set forth at length herein.

24. That on April 29, 2018, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER DAVID WALKER, POLICE OFFICER PETER BORSENKO-Shield No. 20167 and JOHN and JANE DOES-Police Officers as yet unidentified, were acting within the scope of their employment when they, without justification

and without probable cause, imprisoned the plaintiff.

25. That the defendants, POLICE OFFICER DAVID WALKER, POLICE OFFICER PETER BORSENKO-Shield No. 20167 and JOHN and JANE DOES-Police Officers as yet unidentified, while acting within the scope of their employment, intentionally confined the plaintiff against his will and said confinement was not privileged.

26. By the reason of the foregoing, the plaintiff, JOHNNY ANDRE, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR INTENTIONAL
AND NEGLIGENT INFLICTION OF EMOTIONAL
DISTRESS ON BEHALF OF JOHNNY ANDRE**

27. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "26" inclusive with the same force and effect as if more fully set forth at length herein.

28. That the defendant, THE CITY OF NEW YORK, including but not limited to POLICE OFFICER DAVID WALKER, POLICE OFFICER PETER BORSENKO-Shield No. 20167 and JOHN and JANE DOES-Police Officers as yet unidentified, acted intentionally, recklessly and with utter disregard to the consequences of their actions and caused severe emotional distress to the plaintiff through their actions.

29. Said actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulted in severe emotional distress to the plaintiff, JOHNNY ANDRE.

30. That as a result of said intentional and negligent acts, the plaintiff, JOHNNY ANDRE, become sick, sore, lame and disabled, received severe and serious injuries in and about diverse parts of his person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

31. By reason of the foregoing, the plaintiff, JOHNNY ANDRE, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR CIVIL
RIGHTS VIOLATION ON BEHALF OF JOHNNY ANDRE**

32. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "31" inclusive with the same force and effect as if more fully set forth at length herein.

33. The defendant, THE CITY OF NEW YORK, through policies, practices and customs, directly caused the constitutional violation suffered by plaintiff.

34. The defendant, THE CITY OF NEW YORK, through its police department, has had and still has hiring practices that it knows will lead to the hiring of the police officers, including but not limited to JOHN and JANE DOES-Police Officers as yet unidentified, lacking the intellectual capacity and moral fortitude to discharge their duties in accordance with the constitution and is indifferent to the consequences.

35. The defendant, THE CITY OF NEW YORK, through its police department, has *de facto quota* policy that encourages unlawful stops, unlawful searches, false arrests, the fabrication of evidence and perjury.

36. The defendant, THE CITY OF NEW YORK, at all relevant times, was, upon information and belief, aware that these individual defendants, including but not limited to POLICE OFFICER DAVID WALKER, POLICE OFFICER PETER BORSENKO-Shield No. 20167 and JOHN and JANE DOES-Police Officers as yet unidentified, routinely commit constitutional violations such as those at issue here and has failed to change its policies, practices and customs to stop this behavior.

37. The defendant, THE CITY OF NEW YORK, at all relevant times, was aware that these individual defendants, including but not limited to POLICE OFFICER DAVID WALKER, POLICE OFFICER PETER BORSENKO-Shield No. 20167 and JOHN and JANE DOES-Police Officers as yet unidentified, are unfit officers who have previously committed the acts alleged herein and/or have a propensity for unconstitutional conduct.

38. As a direct and proximate result of this unlawful conduct, the plaintiff, JOHNNY ANDRE, sustained the damages hereinbefore alleged.

**AS AND FOR A SEVENTH CAUSE OF ACTION FOR
PUNITIVE DAMAGES ON BEHALF OF JOHNNY ANDRE**

39. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "38" inclusive with the same force and effect as if more fully set forth at length herein.

40. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

41. That the defendant, THE CITY OF NEW YORK, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited to POLICE OFFICER DAVID WALKER, POLICE OFFICER PETER BORSENKO-Shield No. 20167 and JOHN and JANE DOES-Police Officers as yet unidentified, herein-above alleged.

42. By the reason of the foregoing, the plaintiff, JOHNNY ANDRE, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

WHEREFORE, plaintiff, JOHNNY ANDRE, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **First** Cause of Action; plaintiff, JOHNNY ANDRE, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Second** Cause of Action; plaintiff, JOHNNY ANDRE, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Third** Cause of Action; plaintiff, JOHNNY ANDRE, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fourth** Cause of Action; plaintiff, JOHNNY ANDRE, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fifth** Cause

of Action; plaintiff, JOHNNY ANDRE, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Sixth** Cause of Action; plaintiff, JOHNNY ANDRE, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Seventh** Cause of Action; together with attorneys' fees, and the costs and disbursements of this action.

DATED: Brooklyn, New York
March 6, 2019

Yours, etc.,


ROBERT MIJUCA, ESQ.
RUBENSTEIN & RYNECKI, ESQS.
Attorneys for Plaintiff
JOHNNY ANDRE
16 Court Street Suite 1717
Brooklyn, New York 11241
(718) 522-1020
File No.: 18JA04-29

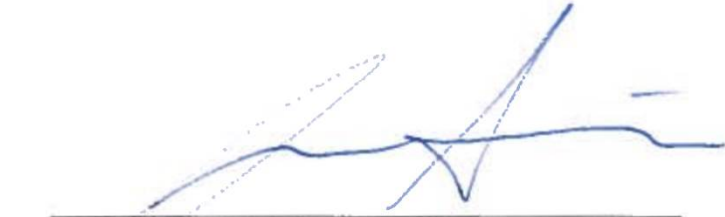
INDIVIDUAL VERIFICATION

STATE OF NEW YORK)

) SS:

COUNTY OF KINGS)

JOHNNY ANDRE, being duly sworn, deposes and says, that deponent is the plaintiff in the within action; that deponent has read the foregoing COMPLAINT and knows the contents hereof; that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters deponent believes them to be true.


JOHNNY ANDRE

Sworn to before me this 5th
day of April, 2019


NOTARY PUBLIC

MAGDA MARIN-COLON
Notary Public, State of New York
No. 01MA6158891
Qualified in Richmond County
Commission Expires 1-16-20 23